JUSTICE BARRETT, with whom JUSTICE THOMAS and JUSTICE GORSUCH join as to Part II–B, concurring.

I join the Court's opinion in full. I write to add a few points about why Hawaii's law triggers—and fails—Second Amendment scrutiny.

I

Hawaii and the principal dissent insist that this is a case about property law, not the Second Amendment. The argument goes like this: No one has the right to enter private property—let alone to bring firearms onto it—without the owner's consent. Brief for Respondent 14–15. Whether consent can be implied or must be express depends on local custom and property rules, which States have always had authority to modify. *Id.*, at 15–16. By requiring express consent, Hawaii has simply modified a default rule of property law. And because the "'*pre-existing* [Second Amendment] right'" did not require any particular default rule, Hawaii's law does not even implicate the Second Amendment. *Id.*, at 13 (quoting *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, 20 (2022)); see *post*, at 231–238 (JACKSON, J., dissenting). No further analysis is necessary.

Case Proof Pending Publication

This argument misunderstands the role of historical evidence in a Second Amendment challenge. *Bruen* establishes a two-part test for assessing whether a modern law is consistent with the Second Amendment. See 597 U. S., at 24. Each step requires a court to look at different evidence—plain text at the first, tradition at the second—but together, the two steps illuminate the original scope of the right. See *ibid.* While history is relevant to both steps, it plays a different "rol[e]" at each one. *United States* v. *Rahimi*, 602 U. S. 680, 738 (2024) (BARRETT, J., concurring). We look to history that "elucidates how contemporaries understood the text—for example, the meaning of the phrase 'bear Arms'"—at *Bruen*'s first step. 602 U. S., at 738–739. We

save "historical gun regulations," however, for *Bruen*'s second step. 602 U. S., at 739.[1]

In this case, *Bruen*'s first step is easily satisfied. Petitioners are members of "the people" and wish to "bear" "Arms" onto private property held open to the public. U. S. Const., Amdt. 2. Hawaii's law makes it a crime for

> "A [licensed] person carrying a firearm [to] intentionally, knowingly, or recklessly enter or remain on private property of another person while carrying a loaded or unloaded firearm, whether the firearm is operable or not, and whether the firearm is concealed or unconcealed, unless the person has been given express authorization to carry a firearm on the property by the owner, lessee, operator, or manager of the property." Haw. Rev. Stat. § 134–9.5(a) (2023).

This is obviously a "regulat[ion]" of "arms-bearing conduct," so it falls within the Second Amendment's plain text. *Rahimi*, 602 U. S., at 691. Whether the law nevertheless comports with our historical tradition of firearm regulation—including the traditional property laws that Hawaii invokes today—is a question for *Bruen*'s second step, not its first.

Page Proof Pending Publication

It is irrelevant, for purposes of the Amendment's plain text, that a property owner has the right to exclude anyone who wishes to enter her property with firearms. No one doubts that all property owners in Hawaii could bar the carry of arms on their respective premises, if they wanted to. But the Second Amendment does not apply to private parties. It does apply to the States. See U. S. Const.,

[1] The principal dissent erroneously claims that this division leaves judges "free to insert any meaning they desire into the text of the Second Amendment." *Post*, at 242 (opinion of JACKSON, J.). No one disputes that the Second Amendment's text has a fixed meaning that must be satisfied before a law is deemed presumptively unconstitutional. See *ante*, at 195 (identifying "three subsidiary questions" that must be answered at *Bruen*'s first step). The disagreement is instead whether courts can smuggle additional limits, drawn from our regulatory tradition, into the plain-text stage of the inquiry. The answer is and always has been no.

Amdt. 14, § 1. And when a State enacts a property law that regulates arms-bearing conduct, that law implicates the Second Amendment.[2]

Consider how Hawaii and the principal dissent's argument would play out in another context. What if a State made it a crime to wear religious head garb (say, a hijab) onto private property open to the public without obtaining express authorization? Could that statute evade constitutional scrutiny? On Hawaii and the principal dissent's logic, the answer is apparently yes: No one has the right to enter another's property without permission, and the State has merely adjusted the default to require permission to be clear. But that is plainly wrong. Because the law regulates religious and expressive conduct, its enactment is state action that triggers First Amendment scrutiny. Cf. *Martin* v. *City of Struthers*, 319 U. S. 141, 143 (1943) (municipal ordinance prohibiting door-to-door solicitation violates the First Amendment).

Page Proof Pending Publication

The same goes for a default rule, like Hawaii's, that targets the right to bear arms. Property laws, no less than other laws, are subject to constitutional limits. See *ante*, at 206–207, n. 13. So when a property law "restrict[s]" the bearing of arms, *ante*, at 195, the State must prove that the law abides by the limits of the Second Amendment.

II

The Second Amendment secures the pre-existing right of the people to have and carry weapons for their defense. But that right was not unlimited at the founding, and it is not unlimited today. See *District of Columbia* v. *Heller*, 554

[2] If Hawaii and the principal dissent were right that the Second Amendment does not kick in until a property owner gives consent, one wonders: Could a State simply prohibit its citizens from authorizing the carry of firearms onto their property? This would certainly interfere with the liberty of property owners, but it is hard to see how, on Hawaii and the principal dissent's logic, the Second Amendment would come into play.

U. S. 570, 626 (2008). Now, as then, States may regulate the keeping and bearing of arms so long as they do not "infring[e]" the right, as originally understood. U. S. Const., Amdt. 2. To determine when a modern regulation crosses the line, we assess whether it comports with "the Nation's historical tradition of firearm regulation." *Bruen*, 597 U. S., at 24. By asking "why" and "how" States historically regulated the right, we can identify the range of permissible regulatory goals and how far States may go to achieve them. *Id.*, at 29. Both the end pursued and means deployed must be "consistent with the principles that underpin our regulatory tradition." *Rahimi*, 602 U. S., at 692.

Under Hawaii's new default rule, no licensed individual (with narrow exceptions) can carry a gun onto someone else's property, even if it is held open to the public, without express and unambiguous authorization. Haw. Rev. Stat. §134–9.5(a). Hawaii explains that this law reflects Hawaiians' aversion to the public carry of weapons—an attitude reinforced by almost two centuries of restrictive gun laws. See 2023 Haw. Sess. Laws 114 (explaining that the default rule was enacted "based on the legislature's assessment of public sentiment and broadly shared preferences within the State"); Brief for Respondent 6–7, 21–22. The State represents that Hawaiians do not think that people should be able to carry guns onto private property—even if it is held open to the public—unless they obtain express consent. See *id.*, at 6. In fact, the overwhelming majority of Hawaiians agree that "loaded, concealed firearms should not be allowed into businesses *at all*." *Id.*, at 7 (emphasis in original). These attitudes appear to reflect the State's "Aloha Spirit," which, as explained by the Supreme Court of Hawaii, "clashes with a federally-mandated lifestyle that lets citizens walk around with deadly weapons during day-to-day activities." *State* v. *Wilson*, 154 Haw. 8, 27, 543 P. 3d 440, 459 (2024).

To satisfy *Bruen*, Hawaii must identify historical laws that pursued an analogous goal in an analogous way. Hawaii

Page Proof Pending Publication

draws two analogies: one to 18th-century antipoaching laws and the other to 19th-century laws that were mostly designed to suppress newly freed blacks. Unsurprisingly, the analogies fail.[3]

A

Hawaii first points to several 18th-century laws that, broadly speaking, prohibited the carry of firearms onto certain property without the owner's consent. See *ante*, at 207–210. Hawaii argues that these laws stand for the principle that a State may "vindicate a property owner's right to control whether and under what conditions the public enters his property" by "condition[ing] . . . entry on obtaining the property owner's consent." Brief for Respondent 28. But that is pitched at too high a level of generality. Because Hawaii's law applies only to the carry of *firearms* onto property held open to the public, the State must offer a justification for singling out firearms for disfavored treatment. Cf. *Bruen*, 597 U. S., at 29 (asking "how and why the regulations burden *a law-abiding citizen's right to armed self-defense*" (emphasis added)). On that score, the reason is clear: Hawaiians disapprove of people carrying guns in public. The problem

Page Proof Pending Publication

[3] Hawaii and the principal dissent also claim that the new law merely "codifie[s]" the State's customary implied license. *Post*, at 237; see Brief for Respondent 21–22. The Court rightly rejects this argument. See *ante*, at 205–207. I will add only that Hawaii and the principal dissent offer no evidence that, before the new default rule, Hawaiians had a custom of requiring express consent before an individual could carry firearms onto property held open to the public. See I. Ayres & S. Jonnalagadda, Guests With Guns: Public Support for "No Carry" Defaults on Private Land, 48 J. Law, Med. & Ethics 183, 184, App. 2 (2020) (Table A1) (explaining that Hawaii previously lacked a "no carry" default for private property and retail establishments); cf. *post*, at 235 (conceding that the common law implied license "might generally include the ability to enter armed"). So when Hawaii and the principal dissent invoke Hawaii's unique "custom," *post*, at 237; Brief for Respondent 22, they are really invoking the State's longstanding prohibition on public carry—a regime that we held unconstitutional in *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1, 15, n. 2, 39 (2022).

for Hawaii, however, is that the 18th-century laws support neither the end that Hawaii pursues nor the means that it deploys, so they cannot justify Hawaii's default rule.

Start with the "why" of the 18th-century laws. As the Court explains, *ante*, at 210, they were enacted in response to the various "abuses, damages and inconveniences" caused "by persons carrying guns and presuming to hunt on other people's lands," 1721 Pa. Laws ch. 246, §3 (preamble), in 3 The Statutes at Large of Pennsylvania From 1682 to 1801, p. 255 (J. Mitchell & H. Flanders eds. 1896). Perhaps chief among these was significant damage to property. One colony complained that "great Numbers of idle and disorderly Persons" would "hunt with Fire-Arms" and "tread down the Grass, and Corn and other Grain standing and growing in the Fields and Inclosures" in the process, causing "Ruin and Destruction [to] the most valuable Improvements." Act of Dec. 20, 1763, ch. 1233, preamble, in Laws of New-York from the Year 1691, to 1773 inclusive, p. 441 (1774). Another lamented that wandering poachers often left deer carcasses to rot, attracting "wolves and other beasts of prey," and frequently destroyed cattle. 1769 S. C. Laws no. 988, in 4 The Statutes at Large of South Carolina 310 (T. Cooper & D. McCord eds. 1838); see 1 J. Logan, A History of the Upper Country of South Carolina 28–29 (1859). Besides damaging property, poachers also deprived the landowner of game that was rightfully his. See M. Brady, Property v. Guns: The Level-of-Generality Problem in *Wolford*, 78 Stan. L. Rev. Online 156, 165 (2026) (Brady). Finally, fellow hunters and innocent bystanders were often put in harm's way; founding-era newspapers were replete with stories of injuries or deaths caused by inadvertent gunfire. See T. Lund, American Wildlife Law 32 (1980); Brady 167–168. Poaching and its associated harms were thus a common problem throughout the 18th century. By requiring hunters to obtain permission before carrying firearms onto another's property,

Page Proof Pending Publication

legislatures aimed to minimize the risk of incidental harm to persons and property.

Yet the 18th-century laws were targeted in "how" they combated the dangers of poaching: They imposed a default rule rather than a flat prohibition, and they generally confined it to places where poaching was likely to occur.[4] For example, Pennsylvania's 1721 law and New Jersey's 1722 law each applied only to "improved or inclosed lands of any plantation." 1721 Pa. Laws ch. 246, § 3, at 255; see 1722 N. J. Laws ch. 35, § 4, in Acts of the General Assembly of the Province of New-Jersey 101 (S. Nevill ed. 1752) ("improved or inclosed Lands in any Plantation"). In other words, they covered fenced or developed areas of a "cultivated estate" or "farm." 2 N. Webster, An American Dictionary of the English Language (1828) (defining "plantation"); see Brady 173 ("'Enclosure' and 'improvement' were visible ways a party could claim possession"); see also, *e. g.*, 1763 N. Y. Laws ch. 1233, § 1, at 442 (covering "any Orchard, Garden, Corn-Field, or other inclosed Land"). Similarly, Massachusetts's 1790 law applied to several small islands where "great numbers of sheep and deer" had been killed and "other damages sustained," and where "the few persons residing on said islands [could] not give proper security." Act of Jan. 30, preamble, 1790 Mass. Laws 259. In this way, legislatures confined the default rule to places where poaching was rampant, while leaving individuals free to carry arms across other kinds of property—including property customarily open to

Page Proof Pending Publication

[4] The principal dissent claims that New Jersey's 1771 law was more sweeping and covered property that was open to the public. *Post*, at 245–246; see 1771 N. J. Laws ch. 540, § 1, in Acts of the General Assembly of the Province of New-Jersey 344 (S. Allinson ed. 1776) (covering "any Lands not his own, and for which the Owner pays Taxes, or is in his lawful Possession"). As the Court explains, there are reasons to doubt this claim. See *ante*, at 209, n. 16. But even if the principal dissent were correct, New Jersey's rule would have been an "outlie[r]" for the period. *Bruen*, 597 U. S., at 65.

the public. See *McKee* v. *Gratz*, 260 U. S. 127, 136 (1922) (explaining that it was then "customary to wander, shoot and fish at will" across "the large expanses of unenclosed and uncultivated land" "until the owner s[aw] fit to prohibit it"). They did not broadly restrict the carry of firearms in public.

What, then, is the regulatory principle that justified these laws? Some might zero in on the fact that they targeted poaching and conclude that a modern law is not "relevantly similar" if it addresses something other than hunting. Cf. Brief for Petitioners 33–34. That focus, however, is too narrow.[5] Colonial legislatures targeted poaching because that was the particular misconduct that they happened to confront. But "[t]he regulatory challenges posed by firearms today are not always the same as those that preoccupied" earlier generations. *Bruen*, 597 U. S., at 27. Today, the right to bear arms is misused in other ways that were unknown to our forebears but pose an equivalent risk to persons or property. The antipoaching laws support the principle that when a State identifies specific places that are prone to particular "abuse[s]" of the right, W. Rawle, View of the Constitution of the United States of America 123 (1825), it can respond with "focused regulations" to address the threat, *Rahimi*, 602 U. S., at 700.

Page Proof Pending Publication

So the problem with Hawaii's default rule is not that it targets a regulatory problem besides poaching. It is that the rule does not target any particular abuse of firearms at all. Rather than identifying a specific threat to public peace and safety, Hawaii admits that it enacted the rule because many of its citizens oppose the public carry of guns. In other words, Hawaii is responding to the general danger associated with the presence of firearms, not to any specific, heightened risk of their misuse. See 2023 Haw. Sess. Laws 114 (invoking general "risks to public health, safety, and wel-

[5] On this much, I agree with the principal dissent: "[T]o set the principle of Hawaii's analogues at 'poaching' is to demand a historical twin." *Post*, at 248.

fare associated with firearms and gun violence"). And rather than confining the rule to specific places where firearms are likely to be misused, Hawaii applies it to *all* private property, even property held open to the public. From the hardware store, to the gas station, to the fast-food restaurant—individuals cannot carry weapons for self-defense unless they obtain express consent.[6]

The 18th-century hunting regulations do not support such a rule. Mere disapproval of protected conduct is not a valid reason to severely restrict it.

B

Hawaii also notes that several States enacted similar default rules in the mid-to-late 19th-century.[7] These laws get Hawaii nowhere.

Once again, look to their "why." Hawaii offers no evidence that these laws were designed to vindicate the community's aversion to people carrying guns in public. Nor is it plausible that they rested on such a basis. At the time, guns were commonly owned for self-defense and hunting, and that trend only increased when many Civil War veterans brought their weapons home. See T. Lansford, The Early History of Guns: From Colonial Times to the Civil War, in 1 Guns and Contemporary Society 28 (G. Utter ed. 2016). And while state courts often upheld gun regulations during this period, they did so because the States were pursuing specific regulatory ends, not because they were hostile to gun rights. See,

Page Proof Pending Publication

[6] Hawaii already prohibits the carry of firearms in places that it deems sensitive, including schools, banks, and establishments serving alcohol. See Haw. Rev. Stat. §§ 134–9.1(a)(8), (12), (4). So Hawaii cannot credibly say that the separate default rule, which applies to all private property, targets anything more specific than the general risk associated with the carry of firearms.

[7] The Court has consistently reserved whether the relevant timeframe for assessing the Second Amendment's original meaning, as applied to the States, is 1791 or 1868. See *United States* v. *Hemani*, 608 U. S. 772, 783, n. 3 (2026). Today's opinion rightly declines to resolve this question.

e. g., *State* v. *Chandler*, 5 La. Ann. 489, 489–490 (1850); *Cockrum* v. *State*, 24 Tex. 394, 401–402 (1859); *Sutton* v. *State*, 12 Fla. 135, 136–137 (1867).

In fact, Hawaii does not dispute that most of the 19th-century laws were understood not to address the carry of guns in general but to curtail the freedom of blacks in particular.[8] After the Civil War, the labor market in the South was a source of "considerable irritation" to the white landowning class. J. Taylor, Louisiana Reconstructed, 1863–1877, p. 90 (1974) (Taylor). Newly emancipated slaves were "prone to test [their] freedom by coming and going as [they] pleased," *ibid.*, and their liberty to forage, hunt, and fish for food reduced their incentive to work on plantations, see B. Sawers, Race and Property After the Civil War: Creating the Right To Exclude, 87 Miss. L. J. 703, 741–743 (2018) (Sawers). Now forced to compete for black labor, white landowners "resented" how blacks could provide for themselves, E. Foner, Reconstruction: America's Unfinished Revolution, 1863–1877, p. 203 (updated ed. 2014) (Foner), and concluded that they would not work on plantations unless compelled to do so, Taylor 90–91. So Southern States enacted a series of harsh laws, known as the Black Codes, to "'stabilize the black work force and limit its economic options apart from plantation labor.'" *Timbs* v. *Indiana*, 586 U. S. 146, 168 (2019) (THOMAS, J., concurring in judgment); see *post*, at 251–252 (JACKSON, J., dissenting).

Page Proof Pending Publication

Louisiana was one of those States. In 1865, three of its local governments enacted sweeping measures that one ob-

[8] The exception is Oregon's 1893 law, which appears to have been a hunting regulation. See The Eugene Guard, May 15, 1893, p. 2, col. 2, https://www.newspapers.com/image/131045758 (archived at https://perma.cc/7MHJ-QC4A) ("The last legislature passed a very stringent hunting law"); Albany Weekly Herald, Sept. 28, 1893, p. 3, col. 4, https://www.newspapers.com/image/565701266 (archived at https://perma.cc/H5AC-ENC8) ("THE TRESPASS LAW. Hunters Will Find Its Provisions Rather Stringent"). As the Court explains, this law is distinguishable on other grounds. See *ante*, at 210–211.

server described as restoring "slavery in substance." S. Exec. Doc. No. 2, 39th Cong., 1st Sess., 96 (1865). Among other things, these ordinances prohibited blacks from renting or keeping a house within town limits, barred them from entering the town without permission of their employers, and forbade them from carrying weapons without authorization. *Id.*, at 92–96. Fearing backlash from Congress, the state government opted for a subtler approach. See W. Caskey, Secession and Restoration of Louisiana 187 (1938). In the fall of that same year, the Democratic-controlled legislature convened a special session and tasked a joint committee with proposing legislation "'to make [freedmen's] labor available to the agricultural interests of the State.'" T. Wilson, The Black Codes of the South 78 (1965). The resulting package of laws was facially neutral, *id.*, at 78–79, but no one was under any illusions about its true aims. As the eventual mayor of New Orleans remarked, the "'whole thought and time'" of the special session was "'given to plans for getting things back as near to slavery as possible.'" Foner 199; see Taylor 101 ("It was understood when [Louisiana's vagrancy law] was passed that it was to be used against blacks but not against whites"). Ostensibly neutral measures like these, we have recognized, were really "consciously conceived methods of resurrecting the incidents of slavery." *General Building Contractors Assn., Inc.* v. *Pennsylvania*, 458 U. S. 375, 387 (1982).

Page Proof Pending Publication

One provision of Louisiana's Black Code was the default rule that Hawaii invokes today. At the time, Louisiana apparently did not restrict by statute where individuals could hunt for game. See Sawers 746, 748; see Fur, Fin, and Feather: Containing the Game Laws of the Principal States of the United States, and Canada 52 (4th ed. 1868). But under the State's 1865 law, no one was permitted to carry firearms "on the premises or plantations" of another without his permission. 1865 La. Acts No. 10, §1, p. 14. Like the other components of Louisiana's Black Code, this law was

designed to control black labor: It "restricted the ability of blacks to feed themselves on open land," thus "pushing [them] into the agricultural labor market." Sawers 748; cf. Foner 203 (explaining that "by limiting hunting," Southern States "made it more difficult for blacks to obtain food or income without working on plantations"). In addition, by presumptively banning the carry of firearms on private property, the law put blacks "at a further disadvantage in protecting themselves" against private violence. B. Crouch, "All the Vile Passions": The Texas Black Code of 1866, 97 S. W. Hist. Q. 12, 29 (1993); see 3 Cong. Rec. 1648 (1875) (Report of Rep. Hoar) (describing Louisiana's law as "depriving the great mass of the colored laborers of the State of the right to keep and bear arms").[9]

It is beyond me why Hawaii would claim that these vile laws can justify its present-day restriction. We can put aside the question whether they are legitimate evidence of the Second Amendment's scope, *post*, at 225–226 (opinion of JACKSON, J.), because regardless, they do not help Hawaii. The State seems to think *Bruen* is a matching game: Southern States enacted broad default rules, Hawaii reasons, so it can do the same today. But even if Hawaii is right that the *how* is analogous, it also must identify an analogous *why*. The Black Codes were enacted to subordinate newly freed slaves.[10]

Page Proof Pending Publication

[9] Two of Hawaii's other laws from 1866—one from Texas and the other from Florida—were similarly part of their respective State's Black Code. See Crouch, 97 S. W. Hist. Q., at 12, 22–23, 28–29; J. Richardson, Florida Black Codes, 47 Fla. Hist. Q. 365, 375, n. 34 (1968). Florida's Black Code was notoriously aggressive, even for its time. See T. Wilson, The Black Codes of the South 96 (1965). For instance, the committee that proposed the laws described slavery as a "benign" and "greatly misunderstood" institution that had ensured a "well regulated labor system," and believed its task was to "devis[e] a plan to make the labor of the emancipated slave available" again. Fla. Senate J. 56 (1865).

[10] The principal dissent contends that the Black Codes shared a "why" with the 18th-century laws because all "were enacted to prevent poaching and other related harms." *Post*, at 255, n. 17. But the relevant question under *Bruen*, 597 U. S. 1, is not simply whether two laws targeted similar

Hawaii obviously does not contend that its law promotes an analogous interest. So its law and the default rules in the Black Codes are not "'relevantly similar.'" *Bruen*, 597 U. S., at 29. Most would take that as a compliment.

* * *

Applying old principles to new circumstances is not always easy. This case, however, is not hard. While most Hawaiians might prefer that no one carry firearms in public places, a majority's opposition to a constitutional right is not a permissible basis for restricting it. After all, "[t]he very purpose of a Bill of Rights was to withdraw certain subjects from the vicissitudes of political controversy" and "to place them beyond the reach of majorities and officials." *West Virginia Bd. of Ed.* v. *Barnette*, 319 U. S. 624, 638 (1943).

JUSTICE KAGAN, dissenting.

Pages Proof Pending Publication

I would uphold the challenged Hawaii law because, as JUSTICE JACKSON shows in Part III of her opinion, it is a modern-day analogue of colonial and founding era laws that similarly prohibited carrying firearms onto private property without the owner's affirmative consent. See *post*, at 243–250. The "how" is identical: The new law, just like the old ones, sets a default rule against gun carry that a private landowner may reverse. The "why" is sufficiently close. Both sets of laws respond to the dangers and harms that someone with a gun can cause on another person's property. That the old laws had a special (though by no means exclusive) concern with poaching does not matter. "The regulatory

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conduct. It is instead *why* they targeted that conduct—that is, what "reason" justified the restriction. *United States* v. *Rahimi*, 602 U. S. 680, 692 (2024). For the 18th-century laws, it was the risk of harm to persons and property caused by hunting. For the Black Codes, it was the ability of blacks to provide for themselves without working on plantations. Because the two sets of laws did not share an analogous justification, they do not stand for the same regulatory principle.